

summarizes which portions of those paragraphs she is objecting to – instead of quoting the specific statements to which she objects.

It is “well within” the trial court’s discretion to overrule any objections that fail to meet the requirement under Rule 3.1354 (b)(3) to “quote or set forth the objectionable statement or material” objected to. (*Schmidt v. Citibank* (2018) 28 Cal.App.5th 1109, 1118.) Given the improper objections, the Court overrules all of Cross-Complainant’s objections.

Cross-Defendants’ Objections to Lu Declaration

“Each written objection must be numbered consecutively ...” (Cal. R. Ct. 3.1354 (b).) As with the Separate Statement, Cross-Defendants fail to number their objections, instead just referencing paragraph numbers of the Lu Declaration. Counsel are reminded – again – to comply with the Rules of Court. Also, while Cross-Defendants object to individual paragraphs of the Lu Declaration separately, many of those paragraphs contain multiple sentences and/or references to exhibits. Thus, it is difficult for the Court to determine what specific part of the statement is being objected to. As such, if any portion of the paragraph is proper, the Court will overrule the objection.

Objection 1 : Overruled.

Objection 2: Overruled

Objection 3: Overruled.

Objection 4: Overruled.

Objection 5: Overruled.

Objection 6: Sustained (Cal. Evid. Code § 702, 1200.)

Objection 7: Overruled.

Objection 8: Overruled.

Objection 9: Overruled.

Objection 10: Overruled.

Objection 11: Overruled.

Objection 12: Overruled.

Objection 13: Overruled.

Objection 14: Overruled.

14. 9:00 AM CASE NUMBER: MSC19-02596

CASE NAME: DEBRA WALKER VS. TROY MARTINEZ

***HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL**

FILED BY: MARTINEZ, TROY

TENTATIVE RULING:

The hearing is continued on the court’s motion to Friday, February 27, 2026 at 9:00 am in Department 32 for two reasons: lack of proof of service of moving papers on Plaintiff, and late filing of the opposition by Plaintiff. Each side has committed procedural errors.

Code of Civil Procedure § 583.360 provides, “An action shall be dismissed by the court on its own motion or on motion of the defendant, *after notice to the parties*, if the action is not brought to trial within the time prescribed in this article.” (Emphasis added.) Here there is no proof of service on the

Plaintiff of notice as required by § 583.360. Per Local Rule 3.52(a), proofs of service of Notice of Motion are required to be filed in the Clerk's Office not less than two calendar days preceding the time set for the hearing.

Plaintiff filed an untimely opposition on January 20, 2026. Local Rule 3.52(d) requires opposition papers to be filed at least five court days prior to the hearing. The opposition was due to be filed January 15, 2026 (due to the court holiday on January 19, 2026). Local Rule 3.52(d) also authorized the court "to act on the matter without the consideration of the document so filed." The court notes that the Plaintiff's opposing papers are not accompanied by a proof of service.

In the interest of justice, the court will continue the hearing to Friday, February 27, 2026 at 9:00 am in Department 32. Defendants are ordered to serve Plaintiff with notice of the new hearing date, this order and all motion papers required under CCP § 1010 by close of business (5:00 pm) on January 23, 2026. All parties to file proofs of service of their papers.

15. 9:00 AM CASE NUMBER: N25-1916
CASE NAME: CLAIM OF:RENE VAN BUSKIRKRENE VANBUSKIRK
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

The Petition to Approve Compromise of Minor's Claim is approved. The court will execute the proposed orders as lodged on September 29, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-00060
CASE NAME: DARYL MERRITT VS. ANDREA MERRITT
***HEARING ON MOTION FOR DISCOVERY COMPEL ANDREA MERRIT TO APPEAR FOR DEPOSITION**
FILED BY: MERRITT, DARYL
TENTATIVE RULING:

PARTIES TO APPEAR.

17. 9:01 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR ADMISSIONS, SET ONE (1)**
FILED BY: SCHAKANOVICH, ALDVIN
TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses to Requests for Admissions is granted in part and denied in part.